THE REPUBLIC OF CORTESIA DEL MAR
COMMON COURT

In the matter between:
ADELIEXY

&

CORTESIA DEL MAR

CASE DETAILS

CASE NUMBER: 6

COURT: CommradePotatoe J

DATE: 24 April 2025 (GMT)

JUDGMENT

JUDGMENT OF THE COURT: CommradePotatoe J, paras [1] – [87]

JUSTICE COMMRADEPOTATOE delivered the judgment of the Court.

I. Facts

[1] On the 20th of April 2025, a famine supposedly struck the settlement of Yachtlandia. AdelieXY, while in the south of his city, died because of hunger loss. Security Minister Yodabird19 promised a delivery of food to Yachtlandia, but this delivery never came.

[2] Following this, several news posts were made to the Horizon's End main discord server from various players purporting to help end the crisis.

[3] Two days later, following the beginning of proceedings in this court, Yodabird19 delivered a "full-scale Woolworths™ brand automatic wheat farm" to Yachtlandia.

II. Jurisdiction of this Court

[4] CHIEF JUSTICE ICECARIM raised a concern of whether this case engaged the exclusive jurisdiction of the Supreme Court, since this case allegedly involved a dispute between state institutions. Those being the national government, and the local government of Yachtlandia.

[5] We however disagree on for two reasons.

[6] The case was brought to us by AdelieXY and not any local government, it concerns his rights and his alone.

[7] Furthermore, the existence of any legal government is questionable in our eyes. The Cabinet has not appointed any provisional mayor under the terms of the Settlements Act, so we fail to see how the territory of Yachtlandia is anything more than national land under the State.

[8] We dismiss this claim.

III. Actions of this Court

[9] CHIEF JUSTICE ICECARIM asked this Court if he could ask questions. We accepted this request. Like in *Troll_Bebek*, we do not feel there was any issue, as his inclusion was at the sole discretion of the Court.

[10] President Oko asked to join this case on the side of AdelieXY. This we granted, we however, are unable to fully separate President Oko from her position as president. This Court will still take her testimony, when asked as the president, as representative of the Cortesian government.

[11] We issued a subpoena to Yodabird19 for testimony in this case. This was because he had ignored numerous pings from the Court, and his close connection with the facts of the case. We do not feel there is any issue here because his testimony is of benefit to the Court.

IV. Initial Arguments

[12] AdelieXY applies to this Court, alleging that the government of Cortesia Del Mar failed to uphold their rights under Section 12(1) of the constitution.

[13] For reference, Section 12(1) reads as follows:

> "Every national has the right to sufficient food or a source of sufficient food."

[14] Furthermore, the plaintiff asks for "a lot of chicken and proper financial compensation" for the damages incurred by this alleged failure.

[15] We shall focus on the constitutional matter at hand first, then we shall consider whether this case concerns itself with Civil Reparations.

V. Food Rights

[16] We asked President Oko, the chief representative of the state, to confirm that she felt the government had failed to uphold their Section 12(1) obligations, to which she responded in the affirmative. This statement would make this case rather cut and dry.

[17] We however, still had some reservations as to whether AdelieXY's rights had been violated. A right to a food source isn't the same as a right to have food personally delivered to you. If the State has an accessible point where people can pick up food, then that would fulfill the needs of Section 12(1) in the eyes of this Court.

[18] Does the state maintain any depots for food? They in fact do, there are food farms at Woolworths and Cadia, and there is a food chest within the Setra Maria city storage that has always been stocked. The question now becomes a matter of accessibility, and whether AdelieXY had access to these food sources.

[19] This Court holds that there are three components that make a physical site accessible. Distance from the site, ability to travel to the site, and awareness of the site. If a person is simply too far from a site, it would be unreasonable to expect them to travel to it. If a person is unable to travel to a site, access is impossible. If a person is unable to learn of the site, they wouldn't know where to go.

[20] These food sources meet our first condition well enough. With a shuttle and some chetherite, a player can quickly jump to these sites and access the food supply.

[21] What we struggle with is the ability to travel there and how well known these food sites are.

[22] While the ability to fly to these sites is guaranteed in times of peace, in a state of war, or during periods of high piracy, the ability to travel to these sites of dubious. Suddenly people seeking out food from distant settlements must burden themselves with the risk of being sunk and losing property.

[23] The food depots of the government fare better when it comes to awareness. Nothing precludes someone from simply asking a state official "where do I get food" and someone who knows providing an answer. That, however, doesn't fully meet our check for awareness. Sometimes there isn't anyone online or active that can provide an answer. There is also the issue that there isn't any permanent source of information on food depots. The information page within our discord lacks any mention of where players can get food.

[24] With all three components considered, mainly the ability to travel, we cannot find the Setra Maria item storage, Woolworths production complex, or the Cadian platform farms to be sufficiently accessible to all Cortesians.

[25] Furthermore, we hold that the government must maintain at least one sustainable food source on each planet where a permanent Cortesian population exists, in order to account for the possible risks that may arise in space flight.

[26] What constitutes a sufficient food source though is another question.

[27] The nature of a food source is clear enough in the eyes of the Court. It is a farm, be it cattle or plant, that can be used as a source of food. There exist 2 wheat farms in Yachtlandia, one on the north side of the settlement, and one on the south side. The north farm produces 615 wheat, and the south farm produces a significantly smaller amount of 108 wheat. In total, the farms produce about 3.7 stacks worth of bread.

[28] We have our doubts as to whether this constitutes a sufficient food source as envisioned by the constitution. The bread amount produced is certainly enough to live from indefinitely, but it isn't enough food within the Context of Horizon's End.

[29] Horizon's End possesses many industrial multiblocks capable of mass food production that would make a food harvest completely irrelevant and save significant amounts of time. Yachtlandia's farms produce enough to live, but they are frustrating to use and don't produce an amount of food that a large population could live off.

[30] So, considering the fact that we did not find existing infrastructure accessible, nor did we find preexisting Yachtlandian infrastructure sufficient, we are forced to conclude that AdelieXY's section 12(1) rights were violated by the state.

VI. The Civil Reparations Claim

[31] When hearing this case, we first proclaimed our support for the notion that this was a Civil Reparations claim. Doubt, however, grew in this Court's head.

[32] Section 23(2) states:

> "Anyone subjected to a violation of, or threat to, a right or any other interest recognised by law has the right to receive an effective and equitable remedy from a court order."

[33] We were concerned with whether we should have considered AdelieXY's potential harm under the Constitution, or the Civil Reparations Act. When we asked the question, CHIEF JUSTICE ICECARIM raised this point:

> "Just to say that it might be worth considering the issue from this perspective:
> the constitution provides broad protections and the national forum can enact specific provisions to give effect to those protections in specific ways."

[34] And we agree with this sentiment. This Civil Reparations Act, as it appears to the court, is a extension of Section 23(2). Therefore, we hold that this case is also a Civil Reparations claim.

[35] In *Peregri v. Oko*, CHIEF JUSTICE ICECARIM held:

> "When presented with a claim arising under the [Civil Reparations] Act, a court must first identify the type of delict involved. This involves an evaluation of the facts alleged so as to understand which pattern of conduct, harm, causation, fault, and wrongfulness the claim falls into. Where the claim is entirely novel, and therefore cannot be characterised as a defined delict, the court may establish it as a new category of delict. But courts must always keep in mind that they are constrained by the common elements set out in the Act."

[36] We agree with this holding, and we shall let it guide our ruling here.

[37] We hold that there are four types of delicts that were claimed during proceedings, a constitutional tort, loss of life, loss of dignity, and loss of operational efficiency, of which we shall define below:

1. A constitutional tort is a failure to uphold, or breach thereof, of someone's constitutional rights.
2. Loss of life is when your Minecraft character dies in game.
3. Loss of dignity is when someone is humiliated, or otherwise has their reputation harmed.
4. Loss of efficiency is when someone has their economic output harmed.

[38] Section 6 of the Civil Reparations Act states:

> "The presence of the following elements must be established on a balance of probabilities for a plaintiff to succeed with a claim.
> (a) Harm to a legally-protected interest of the plaintiff.
> (b) Conduct by the defendant that causes the harm.

(c) Intention or negligence on the part of the defendant to cause the harm.
(d) Wrongfulness in terms of Subsection (3)."

[39] Let us start with what harm was claimed, and what occurred.

A. Harm

[40] There were four harms alleged, but we submit only two of those harms occurred. When it comes to allegations of loss of dignity, or loss of efficiency, we struggle to see any evidence of harm.

[41] No evidence was presented that showcased the economic output of AdelieXY or Yachtlandia were harmed. As far as we are concerned, any allegations of economic loss consisted of speculation.

[42] The same goes for the plaintiffs claim of a loss of dignity. Players die often in Minecraft, so that shouldn't be shocking to anyone who plays the game. AdelieXY received a lot of foreign support with his crisis, so we find it even harder to reason that this event has brought AdelieXY any reputational harm.

[43] As for harm to the plaintiffs' rights, and in game character, harm most certainly existed. AdelieXY did in fact die, and as we held earlier, suffered a breach of rights.

[44] Before we consider the question of causation, we'd like to take a brief detour to consider the alleged famine.

[45] Frankly, this Court does not believe there even was famine. Famine does not exist within the context of Minecraft. There is no game mechanic that will ruin or limit crop outputs.

[46] As far as this Court is aware, no biome plug-ins exist to prevent crop growth based on biome, as was the case on CivMC. This is made even more evident by the existence of the Woolworths Production Complex, which grows everything in one singular place.

[47] The existence of the farms further compounds the fact that food production existed within Yachtlandia. Finally, the food consumption rate in the region is low, consisting of only one person, the plaintiff.

[48] With all this considered, we submit that there never was any famine in Yachtlandia.

[49] We shall now consider whether the inaction of the state caused the harm we outlined.

B. Causation

[50] The two delicts we outlined were that of loss of life, and constitutional tort.

[51] The test for a causal relationship as outlined in the Civil Reparations act is as follows:

> "The following enquiries must be satisfied to establish a causal connection between the conduct of the defendant and the harm suffered by the plaintiff, as contemplated in Subsection (1)(b):
> (a) Factual causation must be established in that, but for the conduct of the defendant, the result would not have occurred.
> (b) Legal causation must be established considering—
> (i) whether the conduct of the defendant is proximally related to the harm;
> (ii) whether the conduct of the defendant causes the harm in the ordinary course of affairs; and
> (iii) whether attributing causation to the defendant is in the interests of justice."

[52] In the interests of justice, we hold that in cases of loss of life, a person must explore every opportunity to save their character before they expire. It would be unreasonable to put the liability onto someone, when the player who died failed to exercise any self-preservation.

[53] The plaintiff himself submitted, when asked why they did not simply buy food from the bazaar, “I didn’t want to, and I accepted my fate [grammar corrected]”.

[54] We checked some food prices on the bazaar. AdelieXY could have saved his own life for under a credit. A baked potato on the Carthage market only costs 0.05c, which when multiplied of 4 by the remote rate, comes to a whopping 0.2c. We would consider duress a factor here if it wasn’t for the plaintiff’s admission that he realized his hunger bar was low when he was unable to walk, and his subsequent acceptance of fate.

[55] AdelieXY had time to buy something, just 1 food item, quickly from the bazaar, to save their own life. They did not.

[56] Furthermore, everyone has a responsibility to watch their hunger bar. Its one of the most basic gameplay components of Minecraft survival. Any reasonable player should know when they are low on food, and when it is time to get more. The fact that there are farms within the settlement leads us to believe that AdelieXY could have gotten life saving food.

[57] AdelieXY has raised many times the fact that he was out of range of their farms. Even if this were true, he should have had enough food on his person if he was going to be too far from his source of food.

[58] With all this considered, we are simply unable to establish any causal relationship when it comes to the plaintiff’s loss of life.

[59] The constitutional tort fairs much better when it comes to causality.

[60] As we established earlier, the government failed to uphold AdelieXY’s right to a sufficient food source. The states failure to produce a sufficient food production site prior to the case means that it did not meet our prior holding.

[61] Any breach of someone's constitutional rights certainly causes harm in the ordinary course of affairs, and it certainly is in the interest of justice to attribute cause when someone or something breaches them.

[62] The state is the most powerful thing within the nation, as it is the government itself. Its actions carry weight, and its members carry the highest levels of responsibility. We hold that the due to this fact, the bar for proximal harm caused by the government is lower than that of an individual when it has a legal duty to uphold.

[63] The government is the only body charged with upholding constitutional rights, making its actions the closest to the constitutional harm found here.

[64] We find that there was causation in terms of the constitutional tort.

[65] This now leads us to consider whether there was negligence on the part of the state.

C. Negligence

[66] Just to get it out of the way, there was no evidence of any intention presented, so we shall explore whether there was negligence.

[67] Section 7(2) of the Civil Reparations act states:

> "Negligence in this Act is established if—
> (a) a reasonable person in the position of the defendant—
> (i) would have foreseen the reasonable possibility of their conduct causing harm to the plaintiff; and
> (ii) would have taken steps to prevent that harm from occurring; and
> (b) the defendant did not take the steps a reasonable person would have taken to prevent the harm."

[68] We hold that the someone would have reasonably foreseen the possibility of breaching someone's rights if they were in positions of governance. The government should be regularly concerning itself with the rights of its people, and the rights that the constitution charges proactively should require a special level of focus within the halls of governance.

[69] If they had been concerning themselves with the proactive rights of the constitution, they would have likely taken steps to alleviate any issues, such as investigating food access across the nation's territories. As the government, it's their responsibility and duty to worry about the rights of its people.

[70] Finally, in this case of constitutional breach, the defendant did seek out means to prevent the harm, by asking Security Minister Yodabird19 for food. Yodabird19 confirmed the happenings on this inquiry with the chat logs he provided in his subpoena request.

[71] Yodabird19 answered the call for food but unexpectedly logged off. He could have warned his fellow cabinet members as to AdelieXY's needs, but he didn't.

[72] Even when various server news posts were made, and government officials commented on them, nothing was done for two days. No one dropped off any food. President Oko was upset by these happenings, even joining the plaintiff in this case, yet she seemingly did little to alleviate the supposed crisis either.

[73] As far as we are aware, no orders were given, nor was food personally delivered, by the President. This only adds to our belief that there was negligence.

[74] Considering all this, negligence is established on the part of the government.

D. Wrongfulness

[75] We finally arrive at whether the states conduct was wrongful. Section 6(3) of the Civil Reparations Act states:

> "The enquiry for wrongfulness is as follows:
> (a) If the conduct involves a positive act which causes harm to a legally-protected interest of the plaintiff, that conduct is presumed wrongful.
> (b) If the conduct involves an omission which causes harm to a legally-protected interest of the plaintiff, that conduct is only presumed wrongful if the plaintiff establishes that the omission—
>
> (i) is in breach of a legal duty on the defendant; or
> (ii) is manifestly against public policy.
>
> (c) Where a presumption of wrongfulness is established, the burden is on the defendant to rebut this presumption by demonstrating, on a balance of probabilities, a legally-recognised justification for the causing of the harm."

[76] It is clear to us that the breach here occurred due to an inaction, or an omission as the act calls it. As we established earlier, the state failed to fulfill the obligations of Section 12(1). Failing to fulfill the obligations of the constitution is clearly a breach of the government's legal duty. We find this omission to be wrongful.

[77] Furthermore, the state has provided no legally recognized justification for causing the harm.

[78] We hold that wrongfulness has been established when it comes to the constitutional tort, and as a result, the plaintiff's claim on this delict succeeds.

VII. An effective and equitable remedy

[79] The harm established here is hard to apply a quantifiable value to. It involves the breach of rights, and only the breach of rights. We cannot factor in the delicts we dismissed.

[80] As a result, we hold that in cases of constitutional tort, the value of the harm must be determined based on the importance of the right or rights at hand, and the extent of the breach.

[81] Here, the rights concerned are that to food, or a source thereof. This is an important right, as it concerns the basic ability of someone to play the game.

[82] AdelieXY was however, still in a position to play the game, thanks to his preexisting farms, even if his rights were not fulfilled in totality. The breach that occurred merely meant that AdelieXY had to devote some of his time to farming, however annoying that may be.

[83] While the plaintiff suffered a grave breach to their rights in and of itself, the extent to which the breach affected them is limited.

[84] Therefore, we feel that 50,000 credits is a sufficient amount of money to alleviate the harm.

[85] We were also planning on ordering the construction of a food source consistent with our definition of sufficient. Yodabird19 already did this during this case, by delivering a sufficient food production site. We no longer have any reasons to issue this order.

VIII. Order

[86] 50,000 credits shall be paid to AdelieXY from the government, within 1 week following the issuance of this ruling.

[87] AdelieXY may apply to this Court if payment is not received in due time.

It is so ordered.